

CONTENT PROVIDER AGREEMENT

Last Updated: Nov 30, 2022

This Content Provider Agreement applies certain individuals and organizations supplying content to our Site (“Content Providers”) and constitutes a binding, legal agreement between the Content Providers and Thome Legacy Technologies, Inc., dba Thome Images (“Thome”). By using the Site, you accept the terms and conditions described below, in addition to the terms and conditions of our current [Terms of Use and Service](#) (collectively referred to herein as the “Agreement”), and you warrant and represent that you have the legal capacity to enter into this Agreement. The Terms of Use and Services are hereby incorporated into and made a part of this Agreement by reference. All capitalized terms not defined herein shall have the meaning ascribed to them under our current Terms of Use and Service. In consideration of the mutual covenants made herein, the parties agree as follows:

1. Relationship. Content Provider is engaged in the business of providing content and other materials on a freelance basis. The parties expressly agree and acknowledge that the relationship created by this Agreement is one of Independent Contractor. THOME is not the employer of Content Provider, and Content Provider is not, and will not be treated as, an employee of THOME for federal tax purposes, or any other purposes. This Agreement does not designate either party as the agent, employee, legal representative, partner or joint venturer of the other party for any purpose whatsoever.

2. Term. This agreement will begin today and shall continue until terminated as provided by either party. If either party violates a term of this Agreement, then the other party (the “Non-breaching Party”) may terminate this Agreement, effective immediately upon delivery of written notice of termination by the Non-breaching Party. Notwithstanding the foregoing, either party may terminate this Agreement at any time for any or no reason, effective upon thirty (30) days written notice.

3. Services. Content Provider agrees to submit, on their sole initiative, written Content to THOME on the subjects proscribed in said Content. The manner and method of producing this Content is solely at the discretion of Content Provider; THOME has no right of control over Content Provider’s manner or method of performance under this Agreement.

4. Representations And Warranties. By submitting an Content to THOME, Content Provider represents and warrants that the Content is Content Provider original work, that the Content is not owned by any third party, that the Content is accurate, that the Content has not been obtained by unlawful means, that the Content has not been previously published in any manner or medium, specifically including, but not limited to, print or electronic means, and that publication of the Content by THOME will not violate any copyright or other intellectual property right of any third party. In the event the Content is not the original work of Content Provider or any Content submitted, or source of said Content, has been previously published, Content Provider must have written permission by the owner of the Content or the publication attached to the Content submission.

5. Payment. THOME will agree to pay Content published by THOME as mutually agreed by both the Content Provider and THOME. Under no circumstances will Content Provider be paid on an hourly, daily, or other basis that is a function of time. Content Providers acknowledges and agrees that THOME will only pay Content Providers for Content that is published, and THOME has the sole and exclusive authority to determine whether to publish all Content submitted by Content Provider. Content Provider understands and agrees that THOME may publish, at its sole discretion, any number of photographs less than or equal to those submitted by Content Provider with the Content. As an Independent Contractor, Content Provider shall be responsible for the reporting, deposit and payment of any and all federal, state, and local taxes, including but not limited to income taxes, FICA taxes, and unemployment taxes incidental to the performance of, or payment under this Agreement.

6. Assignment and Ownership of Intellectual Property. Content Provider hereby understands and agrees that all Content submitted to, and published by, THOME under this Agreement shall be considered *works for hire*, and further, to the extent any intellectual property right does not pass pursuant to a work for hire, Content Providers hereby assigns to THOME all rights to publish the Content, and all previously submitted Content of Content Providers, in any tangible medium of expression, now known or later developed, from which it can be perceived, reproduced, or otherwise communicated, either directly or with the aid of a machine or device, including without limitation the rights to archive, republish, edit, repackage or revise any Content in any manner as THOME sees fit. You also agree to waive any right of approval for THOME's use of the rights granted herein and agree to waive any moral rights that you may have in connection with the Content. The rights conferred upon THOME by this agreement shall be exclusive to THOME once it publishes the Content. The Content Provider shall cooperate with THOME and shall take all steps and execute and deliver all such documents as may be appropriate to assist THOME to perfect and evidence such ownership and to obtain, defend and enforce THOME's rights therein.

7. General. No amendments or modifications may be made except as set forth in the Agreement and Amendments section below or in a written document, signed by both parties. The United Nations Convention on Contracts for the International Sale of Goods shall not apply to this Agreement. The failure by any party to exercise any right provided herein shall not be deemed a waiver or forfeiture of any such right. This Content Provider Agreement and all rights appurtenant hereto shall be fully transferable or assignable by THOME, in whole or in part, by operation of law, by virtue of an acquisition or merger of THOME, or otherwise, without any consent of Content Provider. THOME without any additional notice or consent on the part of Content Provider may enter into any agency or sub-distribution agreements with respect to the Content or other materials of Content Provider. Subject to the above, this Agreement shall be binding upon and inure to the benefit of the successors and assigns of the respective Parties hereto. Every provision of this Agreement is intended to be severable. If any section of this Agreement is found to be invalid or unenforceable, then such section will be deemed amended and interpreted, if possible, in a way that renders it enforceable. If such an interpretation is not possible, then the section will be deemed removed from this Agreement and the rest of this Agreement will remain in full force and effect. This Agreement is governed by the laws of the Commonwealth of Massachusetts, USA, without regard to its choice of law provisions. The parties agree that any dispute involving THOME related to this Agreement or the Site that cannot be settled by good faith negotiation shall be submitted to arbitration in accordance with the rules of the American Arbitration Association. The location of the arbitration shall be Boston, MA, USA. The arbitration shall be conducted by a single arbitrator. The decision of the arbitrator shall be legally binding and shall be enforceable in any court of competent jurisdiction.

IN WITNESS WHEREOF, the parties have caused this Content Provider Agreement to be executed by their respective Parties thereunto duly authorized.

THOME LEGACY TECHNOLOGIES, INC.

CONTENT PROVIDER

By: _____
Name: _____
Title: _____

Name: _____